

FINAL DRAFT RESOLUTION

Committee: United Nations Human Rights Council

Topic: Assessing the Human Rights Implications of Mass Deportation Policies under the Trump Administration

Sponsors: Russian Federation, The People's Republic of China, South Africa, Republic of Mexico

Signatories: The Republic of Serbia, Malaysia, Republic of India, Republic of Finland, The people's republic of Bangladesh, Democratic Socialist Republic of Sri Lanka, Federative republic of Brazil, Republic of Slovenia, The Republic of Morocco, The Republic of Indonesia, The Republic of Poland, People's Republic of Nepal, Republic of Chile, Ukraine, Bolivarian Republic of Venezuela, Republic of Ireland, Republic of India, Republic Union of Myanmar, Arab republic of Egypt, Argentine Republic, Kingdom of Spain, Kingdom of Norway, The State of Qatar, Kingdom of Denmark, Czech Republic,

United Nations Human Rights Council,

Recalling the Universal Declaration of Human Rights (UDHR), the International Covenant on Civil and Political Rights (ICCPR), the Convention on the Rights of the Child (CRC), the International Convention on the Elimination of All Forms of Racial Discrimination (ICERD), the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (CAT), and the Convention relating to the Status of Refugees (1951 Refugee Convention),

Reaffirming the principle of non-refoulement, enshrined in Article 33 of the 1951 Refugee Convention and Article 3 of the Convention Against Torture, which prohibits returning individuals to territories where they face persecution, torture, or threats to life and freedom,

Emphasizing that Article 12 of the ICCPR guarantees freedom of movement, Article 17 prohibits arbitrary interference with family and home, and that all Member States are obligated to promote and protect human rights and fundamental freedoms for all, without distinction of any kind,

Recognizing that mass deportations conducted without individualized assessments, adequate due process, or consideration of best interests of the child constitute systematic violations of international human rights law, particularly the rights of asylum seekers, families, and children,

Noting with grave concern the escalation of deportation operations under both Trump administrations (2017-2021 and 2025-present), characterized by the use of military resources, raids in sensitive locations, and enforcement policies targeting mixed-status families,

Alarmed by credible reports that during the first Trump Administration (2017-2021), over 440,000 people were deported, and immigration enforcement operations resulted in the forcible separation of at least 5,569 children from their parents under the "Zero Tolerance" policy, with over 1,000 children still unaccounted for as of 2023,

Deeply concerned by documentation from the Department of Health and Human Services that at least 3,900 additional children were separated between July 2017 and January 2021 due to various enforcement policies beyond the widely publicized Zero Tolerance cases,

Disturbed by reports from the Trump administration's second term (2025-present) indicating that within the first 100 days, over 142,000 individuals have been deported and over 32,000 arrested in the first 50 days alone, representing a significant increase in enforcement operations,

Further alarmed by the reversal of previous protections allowing ICE raids in schools, hospitals, courts, and places of worship, creating a climate of fear that deters access to essential services including education, healthcare, and justice, in violation of Article 26 of the UDHR (right to education) and Article 12 (right to health),

Concerned by the systematic use of military aircraft, resources, and personnel in civilian immigration enforcement, blurring the lines between law enforcement and military operations in violation of international norms,

Noting with particular concern that ICE has cast a wider net than under previous administrations, with reports indicating that a significant percentage of new immigration detainees have no criminal charges, indicating increasingly indiscriminate enforcement,

Deploring the use of advanced surveillance technologies, predictive algorithms, and coercive digital mechanisms including the CBP Home "self-deportation" mobile application, which create coercive digital environments forcing families into exile without proper legal review,

Expressing serious concern over the expansion of detention capacity beyond existing limits, including consideration of facilities at Guantanamo Bay and the use of foreign prisons such as CECOT in El Salvador, raising questions about indefinite detention and extraterritorial human rights obligations,

Disturbed by reports of substandard conditions in detention facilities, including overcrowding, inadequate medical care, family separation, denial of legal counsel, and psychological trauma inflicted on vulnerable populations, including documented cases of child deaths in custody,

Acknowledging documented cases of deportation flights being refused by receiving countries, creating situations of indefinite detention and statelessness for affected individuals,

Recognizing the disproportionate impact of mass deportation policies on Latin American, African, Caribbean, and Muslim-majority populations, raising concerns about racial and religious profiling in enforcement operations,

Noting the documented negative economic and social impacts on agricultural, construction, hospitality, and other essential industries dependent on immigrant labor,

Deploring the termination of humanitarian programs including parole for Cubans, Haitians, Nicaraguans, and Venezuelans, and Temporary Protected Status, exposing hundreds of thousands to potential refoulement,

Condemning the suspension of U.S. refugee resettlement programs while maintaining exceptions that may violate non-discrimination principles,

Acknowledging efforts by UN Special Rapporteurs, OHCHR, UNHCR, UNICEF, and civil society organizations in documenting systematic human rights violations associated with mass deportation policies,

Commending Member States and regional organizations that have implemented humane alternatives to mass deportation, emphasizing community integration, family unity, and comprehensive immigration reform,

- 1) *Strongly condemns* the systematic and widespread human rights violations occurring through mass deportation operations under both Trump administrations, including but not limited to arbitrary detention, family separation, denial of due process, violations of the principle of non-refoulement, and the use of military resources in civilian immigration enforcement;
- 2) *Demands the immediate establishment* of an independent international commission of inquiry by the Office of the United Nations High Commissioner for Human Rights (OHCHR) to investigate:
 - a) Systematic family separation practices and their long-term psychological impact on children and families
 - b) Conditions in immigration detention facilities, including private and military installations
 - c) Use of military resources in civilian immigration enforcement operations
 - d) Deployment of AI-based deportation algorithms and surveillance technologies

- e) Cases of deportation to countries where individuals face persecution, torture, or death
 - f) Racial and religious profiling in enforcement operations
 - g) Deaths in custody and inadequate medical care in detention facilities;
- 3) *Calls for the immediate suspension* of all deportation operations involving:
- a) Unaccompanied minors and separated children
 - b) Asylum seekers whose claims have not received full individual assessment
 - c) Individuals with pending legal cases or appeals
 - d) Primary caregivers of U.S. citizen children
 - e) Victims of trafficking and domestic violence
 - f) Individuals requiring urgent medical care
 - g) Long-term residents unable to prove continuous residence under expedited removal expansions;
- 4) *Urges the creation* of a UN Special Rapporteur on Mass Deportations and Immigration Enforcement, with mandate to:
- a) Monitor compliance with international human rights standards in deportation policies globally
 - b) Investigate systematic abuses and provide country-specific recommendations
 - c) Assess the human rights impact of immigration technologies and surveillance systems
 - d) Prosecute officials for refoulement or torture violations under international law
 - e) Report annually to the Human Rights Council and General Assembly;
- 5) *Demands comprehensive reparations and accountability mechanisms*, including:
- a) Formal state acknowledgment of violations and public apology to affected families
 - b) Immediate family reunification programs with full government support
 - c) Free comprehensive legal, medical, and psychological services for all separated families
 - d) Pathways to legal status for unlawfully deported individuals and their families
 - e) Financial compensation for documented human rights violations
 - f) Trauma rehabilitation programs for children who experienced detention or separation;
- 6) *Calls upon the Government of the United States* to:
- a) Immediately halt raids in schools, hospitals, courts, and places of worship
 - b) Provide unrestricted access to UN investigators and human rights monitors
 - c) Release comprehensive data on deportations, detentions, and family separations

- d) Cease the use of military resources and personnel in civilian immigration enforcement
 - e) Dismantle coercive digital surveillance and "self-deportation" systems
 - f) Restore humanitarian programs including parole and Temporary Protected Status
 - g) End the use of foreign detention facilities and military installations for immigration detention;
- 7) *Prohibits the use* of the following practices in immigration enforcement:
- a) Separation of children from parents except in cases of immediate danger to the child
 - b) Deportation without individualized assessment and adequate legal representation
 - c) Use of detention facilities that do not meet international human rights standards
 - d) Enforcement operations in or near schools, healthcare facilities, and places of worship
 - e) Deployment of military assets for civilian immigration purposes
 - f) Detention exceeding 72 hours without judicial review
 - g) Use of AI surveillance systems that enable racial or ethnic profiling;
- 8) *Establishes mandatory international standards* for humane immigration enforcement, requiring:
- a) Independent judicial review for all deportation orders
 - b) Guaranteed access to legal counsel and interpretation services
 - c) Community-based alternatives to detention, particularly for families with children
 - d) Trauma-informed care and child protection protocols
 - e) Regular international monitoring and inspection of detention facilities
 - f) Compliance rates of 99% for alternatives to detention programs;
- 9) *Adopts* the HEAR Framework with binding minimum standards:
- a) H: *Human rights screenings applying CRC Art 3, CAT Art 3*
 - b) E: *Equal opportunity audits with public gender/race-disaggregated data*
 - c) A: *Regional Deportation Oversight Panels (RDOPs) with IOM-UNHCR technical authority*
 - d) R: *Sovereignty conditioned on ICCPR OPI ratification*

10) *Supports the development* of a comprehensive international framework for migration governance that prioritizes:

- a) Human rights protection over enforcement-only approaches
- b) Regional cooperation and responsibility-sharing mechanisms
- c) Integration and regularization programs for long-term residents
- d) Protection of mixed-status families and community ties
- e) Sovereignty-respecting approaches to migration governance;

11) *Calls for technological accountability measures*, including:

- a) Mandatory human rights impact assessments for all immigration-related AI systems
- b) Transparency requirements for algorithmic decision-making in deportation cases
- c) Prohibition of surveillance technologies that create coercive environments
- d) International regulation of cross-border data sharing for immigration enforcement
- e) Regulation by the International Telecommunication Union (ITU) of deportation software and surveillance tools;

12) *Requests that UNHCR, UNICEF, and IOM* jointly establish:

- a) Emergency response protocols for mass deportation situations
- b) Annual Global Migration and Human Rights Report with country-specific assessments
- c) Technical assistance programs for Member States seeking alternatives to detention
- d) Family reunification and child protection services across borders
- e) An Annual Global Deportation Practices Review evaluating Member States on human rights compliance;

13) *Encourages Member States* to:

- a) Refuse cooperation with deportation operations that violate international human rights law
- b) Provide temporary protection and services to individuals fleeing mass deportation
- c) Implement comprehensive immigration reforms prioritizing human rights and dignity
- d) Support civil society organizations providing legal aid and humanitarian assistance
- e) Develop community-based reintegration programs for deported migrants
- f) Establish emergency child protection units in border regions;

14) *Condemns the criminalization* of humanitarian assistance to migrants and calls for the protection of human rights defenders, legal advocates, and service providers working

with immigrant communities;

15) *Calls for the immediate ratification and implementation* without reservations of:

- a) The Convention on the Rights of the Child by all UN Member States
- b) The International Convention on the Protection of All Migrant Workers and Members of Their Families
- c) The 1951 Refugee Convention and its 1967 Protocol by all Member States;

16) *Requests the UN Secretary-General* to:

- a) Appoint a Special Envoy on Mass Deportation and Family Separation
- b) Submit annual reports to the General Assembly on global deportation practices and human rights compliance
- c) Coordinate UN system-wide response to mass deportation crises
- d) Facilitate dialogue between sending and receiving countries on humane migration management;

17) *Welcomes initiatives* by Member States including Russia, China, Mexico, and regional organizations that prioritize:

- a) Sovereignty-respecting approaches to migration governance
- b) Alternatives to detention and family separation
- c) Regional humanitarian corridors and burden-sharing mechanisms
- d) Integration programs that strengthen rather than divide communities;

18) *Decides to establish* a permanent agenda item on "Human Rights Implications of Mass Deportation and Immigration Enforcement" for annual review by this Council;

19) *Requests Member States* to submit annual reports on their immigration enforcement practices, including statistics on deportations, detentions, family separations, and human rights compliance measures;

20) *Calls for the establishment* of a voluntary international fund to support:

- a) Family reunification efforts
- b) Legal aid for deportation proceedings
- c) Trauma recovery services for separated families
- d) Community integration programs in receiving countries;

21) *Decides to remain actively seized* of this matter and to convene emergency sessions as necessary to address ongoing human rights crises related to mass deportation operations.